

Ashok Kumar v. State of U.P. — 482 listed; coercive action stayed in s.138 case

High Court of Judicature at Allahabad · Single Judge · 27 April 2024 · APPLICATION U/S 482 No. - 13664 of 2024 · **Application listed; no coercive action till the next date.**

HEADNOTE

On a Section 482 CrPC application to quash a bailable warrant in a Section 138(1)(b) Electricity Act prosecution, the Allahabad High Court granted time for a counter-affidavit, listed the matter, and directed that no coercive action be taken against the applicant meanwhile. The plea that Clause 8.1 of the U.P. Electricity Supply Code, 2005 was not followed during the raid was recorded but not decided.

FACTUAL SUMMARY

Ashok Kumar sought to quash a bailable warrant dated 17 January 2024 issued by the Additional Sessions Judge/FTC-I, Chandauli in Electricity Case No. 815 of 2023 under Section 138(1)(b) of the Electricity Act, 2003. The department's 27 October 2020 inspection alleged that after disconnection for unpaid dues he had illegally tapped supply from the pole, and an FIR was lodged the next day. Counsel argued that Clause 8.1 of the U.P. Electricity Supply Code, 2005 was not followed during the raid.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

s.482 listing and stay of coercive process

HOLDING

The Court did not decide the challenge to the bailable warrant or the Clause 8.1 Supply Code objection. Time was granted for a counter-affidavit; the application was listed; and no coercive action was to be taken against the applicant till the next date. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 8.1 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 WAS FOLLOWED DURING THE RAID

Raised by the applicant; recorded without determination. ¶ 5

NOT DECIDED — WHETHER THE BAILABLE WARRANT DATED 17.01.2024 SHOULD BE QUASHED

The Section 482 application remains pending. ¶ 2